AVIM INVESTMENTS (PRIVATE) LIMITED
versus
LIVETOUCH INVESTMENTS (PRIVATE) LIMITED
and
SHERIFF OF THE HIGH COURT GWERU

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 12 & 19 February 2026

Urgent Court Application

A Bangidza with *Z Makwanya*, for the applicant
T Magwaliba, for the first respondent
No appearance for the third respondent

DEMBURE J: This is an urgent court application for a compelling order filed in terms of r 59(6) of the High Court Rules, 2021 (*"the Rules"*). On 12 February 2026, the court handed down an *ex tempore* judgment, the operative part of which reads as follows:

> "1. The application succeeds.
> 2. The 1st Respondent shall pay to the Applicant the sum of US$380,000.00 or its equivalent in local currency at the prevailing interbank rate at the time of the payment.
> 3. In the event that the 1st Respondent fails to pay as stated in paragraph 2 above, the 2nd Respondent be and is hereby authorised to proceed with execution to recover the said sum.
> 4. The 1st Respondent shall pay the costs of this application."

On 13 February 2026, I was advised by the Registrar that written reasons for the court's decision were required for the preparation of the record, as the first respondent had filed an appeal in the Supreme Court against this court's decision. The following constitute the full written reasons thereof.

FACTUAL BACKGROUND

It is common cause that the applicant and the first respondent entered into a written contract in terms of which the applicant would supply and transport 1,000 tonnes of coal fines from Hwange to the first respondent's stated delivery point for an agreed sum. A dispute arose

after the applicant alleged that the first respondent had breached the contract. The respondent also made a counterclaim. The matter was resolved by an arbitral award issued by the late retired Justice MTSHIYA on 20 August 2021, and later amended on 26 August 2021. The terms of the award were, *inter alia*, that the first respondent was directed to pay the applicant the sum of US$815,000 for a total of 56,000 tonnes of coal fines and upon receipt of full payment, the applicant was obliged to allow the first respondent to take delivery of the coal fines.

On 29 June 2022, this court, at Masvingo, granted the application for registration of the arbitral award. In the same judgment, *per* ZISENGWE J in Case No. HMA 48/22, the court dismissed the first respondent's application to set aside the award. There have been several litigations between the parties following that order.

On 28 November 2024, the applicant approached the court for a compelling order on an urgent basis. It was averred that the first respondent had failed to pay the sum of US$380,000 and collect its stockpile of coal fines, which had been kept by the applicant at its own expense. It was stated that the stockpile had been secured specifically for the first respondent. It was also alleged that there was need for the urgent intervention of the court to prevent the stockpile of coal fines from being washed away and eroded by the rains. It argued that the product would lose value, and since the applicant was not in the business of extracting coal fines and coal nuts at the time, it would suffer irreparable harm. It also alleged that it had furnished the first respondent with the release order from Hwange Colliery Company Limited and the delivery schedule. An order compelling the first respondent to honour its obligations by paying what was due was sought.

The application was then set down for hearing and determination before CHITAPI J. On 13 December 2024, the court granted a default judgment in favour of the applicant. The first respondent successfully applied for the rescission of the default judgment. Thus, on 9 July 2025, this court *per* DUBE-BANDA J entered a default judgment granting the application for rescission of the order issued on 13 December 2024. The first respondent was granted leave to file its opposition within ten (10) days of the granting of the order.

On 17 July 2025, the first respondent filed its notice of opposition. The deponent therein, George Makonese, averred that he derived his authority to defend the proceedings on behalf of the company on a board resolution attached to the opposing affidavit dated 11 September 2024.

See p 73 of the record. Several preliminary points were raised: that there was no urgency, that the application was defective on account of what it alleged was an undated application and a defective resolution claiming it was signed by one who was not the company secretary, that there was material non-disclosure and that the matter should not have been filed in Harare and must be referred to Masvingo.

On the merits, it was contended for the first respondent that the balance outstanding was not US$380,000.00 but US$112,000.00. The first respondent also challenged the release order from Hwange Colliery Company, arguing that it was forged. It was alleged that the company sent trucks from Kwekwe to Hwange on two occasions to collect the product, but returned without the product. It argued that no stockpile of coal fines or coal nuts existed. It also averred that the applicant had failed to comply with the court order under Case HC CHA 90/22 to supply the first respondent with schedules and release notes orders by Hwange Colliery Company for the collection of 54,000 tonnes of coal fines. It was further contended that, in any case, the applicant had said the stockpile of coke nuts was registered under a separate entity called Philcool Investments (Private) Limited. It was also alleged that the applicant owed the first respondent over US$640,000 worth of coke fines that were paid for but had not been delivered. There were several other allegations raised suffice to state that following the filing of the heads of argument, the matter was set down before me on 12 February 2026.

THE PRELIMINARY POINT

THE VALIDITY OF THE BOARD RESOLUTION ATTACHED TO THE OPPOSING AFFIDAVIT

At the hearing, Mr *Makwanya,* for the applicant, raised a point *in limine* that the board resolution upon which the deponent to the opposing affidavit purports to derive his authority from was invalid and, therefore, there was no valid opposition from the first respondent. It was argued that this was a fundamental point of law which was dispositive of the matter. I will now turn to consider the submissions which were made before me on the preliminary point.

ORAL SUBMISSIONS ON BEHALF OF THE PARTIES

SUBMISSIONS FOR THE APPLICANT

Mr *Makwanya* submitted that with leave of the court, he was raising a serious point of law that was dispositive of the matter. It was a point that goes to the root of the application and

speaks to the board resolution at p 73 of the record. He submitted that the first respondent had not been notified of this, but it was a point that could be raised at any stage of the proceedings and was glaring from p 73. He argued that the point was that the board resolution attached to the opposing affidavit was invalid. The board resolution itself referred to a different case number in which it was giving authority to one George Makonese to represent the first respondent. It is not referring to this particular matter. It stated that the company, Livetouch Investments (Private) Limited, will file opposing papers in case number HCH 3062/24 filed by Avim Investments (Private) Limited at the High Court in Harare against Avim Investments and Philcool Investments (Private) Limited. That is not the present matter. The case number it is referring to is totally different from this matter. As noted from the record, the same case number HCH 3062/24 was actually withdrawn.

Counsel further argued that there was an invalid board resolution as it did not speak to the current litigation. He submitted that there is a plethora of case law, and the latest one being the Supreme Court case, where it was held that the validity of a board resolution is a point which, if it is raised, must not be regarded as a technicality but is a point that goes to the root of the pleadings themselves. And in that matter, such pleadings must be dismissed. I was referred to the case of *The Trustees for the Time Being of Oliver Mandishona Chidawu Trust v Broadway Investments (Pvt) Ltd* SC 09/26. In that case, MUSAKWA JA referred to the case of *Madzivire & Ors* v *Zvarivadza & Ors* 2006 (1) ZLR 514 (S) at 516 B-E.

It was argued that there was no valid board resolution. This means that nothing flows from those proceedings to which the person claims to represent the company. They become a nullity, and nothing will flow from that resolution. This also meant that the opposing affidavit in which the person who purports to have represented the company was not authorised to represent the company in this matter. All the papers presented by the first respondent are not authorised, and they are annulled. There are no papers before the court for the first respondent.

Counsel also referred me to the case of *Arosume Property Development (Pvt) Ltd* v *Mashonganyika & Anor* HH 143/25. It was argued that the court adopted the same principle as the Supreme Court. It was submitted that in para 25 of the judgment, His Lordship specifically mentioned that a resolution must relate to specific litigation between the parties. The resolution before the court was not even talking about the proceedings before this court. It is talking to

proceedings that were actually withdrawn, and that involved an additional party who is not before this court.

Mr *Makwanya* went on to submit that the board resolution must not be a blanket resolution. Paragraph 2 of the alleged resolution showed that it was a blanket resolution. It should refer to a specific matter because the company cannot guess when and where litigation will emanate or arise. That paragraph cannot assist the respondent's case. He maintained that there was no valid board resolution and, therefore, no valid opposing affidavit. Once there is no valid opposing affidavit, it means that their pleadings are void *ab initio*. What is void at all times is void for all purposes, and it does not matter by whom and when the issue of validity has been raised. The court may take the same position that it adopted in *Arosume Property Development* (*supra*), which is the same position that was also enforced in the Supreme Court in *The Trustees for the Time Being of Oliver Mandishona Chidawu Trust* (*supra*).

It was argued that, in accordance with the *McFoy* principle, given the invalidity of opposing papers, nothing can flow from it. The whole opposing grounds that had been put in place, including the points *in limine* that had been raised, were void because they stand on nothing. They are not authorised. Under these circumstances, this matter must be granted on the ground that there are no opposing papers before the court. He argued that there was no reason not to grant the application. He submitted that this should dispose of this matter, and he prayed that the order be granted without even going further to the merits.

SUBMISSIONS FOR THE FIRST RESPONDENT

Mr *Magwaliba* submitted that the procedural point taken by the applicant was improperly taken. The ordinary procedure is that a point *in limine* cannot be taken anyhow. Notice of that preliminary point must be given to the other party. Failing to do so will result in litigation by ambush. He argued that at no point did counsel for the applicant bring it to his attention to take the preliminary point. He argued further that the position is that while a party has the right to take any point, including points of law, at any time, due notice must be given to the other party so that the other party prepares and knows what case they have to answer. That point was raised in the Supreme Court judgment in *Allied Bank Zimbabwe Ltd v Dengu & Anor* SC 52/16.

It was further argued that the entire foundation of our common law system is the doctrine of notice, which requires that the party on the other side must be given a fair opportunity to

answer to the case. It was also argued that in *Reverend Clement Nyati* v *The Trustees for the Time Being of the Apostolic Faith Mission of Africa* SC 63/22 KUDYA JA dealt with a situation where the applicant had a preliminary point, and the respondent had its own preliminary points. His Lordship applied the principle of the first-in-time procedural point. The procedural point which first arises is the one that is determined first. At p 5 of the judgment, he said the first point *in limine* to be raised if it disposes of the matter is one that has to be dealt with. He argued that in this matter, it was the first respondent's preliminary points that had to be determined first, as they had been raised first.

Counsel argued that the interpretation of para 2 of the board resolution would show that there is a dispute, an ongoing dispute between the applicant and the first respondent. That dispute has various aspects or elements. Some of those elements are in the High Court in Bulawayo, Masvingo and Harare. Those are not separate disputes. The papers show that there is a dispute relating to the enforcement of the balance outstanding in terms of the arbitral award issued by the late Mr Justice MTSHIYA. George Makonese was authorised to deal with that specific dispute. He argued that this was not a blanket resolution, which was referred to in the *Arosume* case. This was a specific resolution in the sense that in para 1, it specifies case number HCH 3062/24, but in para 2, it specifies aspects of the dispute related to HCH 3062/224.

Counsel also referred me to the case of *Air Zimbabwe Corporation & Ors* v *Zimbabwe Revenue Authority* 2003 (2) ZLR 11 (H), which he quoted extensively. He submitted that the judgment accepts the submissions by counsel for the applicant in respect of the authority of a corporate body and said that, where necessary, there must be a resolution. It then relied upon the South African judgment of *Mall (Cape) (Pty) Ltd* v *Merino K-operaies Bpk* 1957 (2) SA 347(C), which states that it is not in every case that a resolution must be produced. The party that raises the lack of authority has a duty to point out the fact that there is no valid authority for the person who is litigating. The *onus*, as in this case, is on the applicant, and it further says that what is required is a minimum of evidence. Each case must be considered on its own merits, and the court must decide whether enough has been placed before it to warrant the conclusion that it is the applicant who is litigating and not some unauthorised party.

Mr *Magwaliba* also argued that the applicant had not shown that George Makonese was some unauthorised party. The applicant had not discharged the *onus*, which is the person alleging

lack of authority. The ordinary rule on *onus* is that he who alleges must prove. It was the applicant who alleged lack of authority. He further argued that it was known that previously, George Makonese had been representing the first respondent. Reference was also made to the case of *Dube* v *Premier Service Medical Aid Society & Anor* 2019 (3) ZLR 589, in particular para 38. He submitted that the judgment upholds authorities such as *Air Zimbabwe Corporation* v *ZIMRA.* What is critical in para 38 is this important remark that a person who represents a legal entity when challenged must show that he is duly authorised to represent the entity. Where one challenges a resolution, the duty to produce a resolution arises after that has been challenged. It is now that the applicant has challenged the resolution of the first respondent that the first respondent has a duty to produce that resolution. He argued that it was competent. He, therefore, urged the court to do so as an alternative to adjourn this matter to allow the first respondent to bring a resolution because the challenge has just been met.

It was argued that the appropriate course of action, if the court finds that p 73 is not a valid resolution, was not to strike the opposition out. If the court follows the *Dube* case, it will afford an opportunity for the first respondent to produce the resolution. The authorities, including *Arosume,* do not detract from that position. Counsel argued that *The Trustees of the Time Being of Oliver Mandishona Chidawu Trust* case does not detract from the Dube case. He accordingly prayed that the point *in limine* be dismissed and that the applicant pay the costs. As an alternative, if there is any inadequacy in respect of the resolution, an opportunity should be granted to the first respondent to provide that resolution by postponing the matter and allowing the production of a resolution appropriately worded.

REPLYING SUBMISSIONS FOR THE APPLICANT

Mr *Makwanya* submitted that para 2 of the resolution was not specific to the present matter. It relates to HCH 3062/24, which involved another party who is also not in these proceedings and is a furtherance to a dispute that may emanate from HCH 3062/24. There is a notice of withdrawal at p 74, which means that the matter HCH 3062/24 has already been withdrawn. He also argued that the authorities, including *Air Zimbabwe Corporation,* talk of authority as a legal requisite that a company must be authorised. The South African cases are contrary to our Supreme Court case law authority, which speaks of the requirement of a valid board resolution as a prerequisite legal requirement. He further argued that *The Trustees for the*

Time Being of the Oliver Mandishona Chidawu Trust resolves the matter. See para 11 and 12 thereof. If the board resolution is invalid, one does not have the legal standing and any papers that flow from that become a nullity.

He further submitted that counsel for the first respondent had argued that a point *in limine* cannot be raised at any stage. This was different from the case at hand. The point *in limine* that has been raised goes to the root of the matter. Counsel referred to the case of *Muchakata* v *Netherburn Mine* 1996 (1) ZLR 153 (S). In that judgment, the Supreme Court affirmed that points of law can be raised at any stage. This principle was further upheld in the High Court in *Sindikumbuwalo Pacifique* v *The Commissioner General, Department of Customs & Excise* HH 137/18. The point could have actually been raised by the court, without notice. If the courts are allowed to raise that point of law in any proceedings, *mero motu*, if it is a point of law, at any given time, then the issue of notice falls away. The other party can also raise the point, as it goes to the root of this matter. And if it is dealt with, it then disposes of this matter. Because it is a point of law, and the general principle of law is that it can be raised at any time. There is no rule or law that bars a party from raising this point at any time.

Mr *Makwanya* also argued that to say that the first respondent should be allowed time to produce a valid resolution is an admission showing that at the present moment, there is no valid resolution. The law does not allow a person with no authority to go and do another resolution to cure the incurably fatal defect in the pleadings. The invalid resolution before the court cannot be cured by getting a replacement. This is because what is quite clear is that this company is not aware that it has decided to participate in this litigation in its best interests. What was clear was that the first respondent was properly informed of the case relating to HCH 3062/24, which had since been withdrawn. In that case, this was a valid resolution, but not in this matter. A valid board resolution must be placed before the court. If there is no valid resolution or authority, all the pleadings that flow thereof are a nullity. Nothing stands or flows on a nullity. Counsel insisted that he still move that the application be granted.

ANALYSIS

The question which the court ought to determine is whether or not the particular board resolution upon which the deponent to the opposing affidavit purports to derive his authority to

act for the first respondent is valid and, therefore, whether the first respondent is properly before the court.

Before I consider the said issue, I must first determine whether the point of law was properly raised. It was Mr *Magwaliba*'s challenge that the point of law had not been properly raised and, therefore, it ought not to be dealt with. The law is well-established that a point of law, unless it is required by a definitive law to be specially pleaded, may be raised at any stage of the proceedings, even for the first time on appeal. See *Marian Chombo v The partners for the Time Being of Mtetwa & Nyambirai Legal Practitioners* SC 106/25 at pp 13-14, UCHENA JA said:

> "However, the issue of the currency of payment as provided in s 4 (1) (d) of Statutory Instrument 33 of 2019 as substituted by s 22 (1) (d) of the Finance Act No 2 of 2019, is an ordinary point of law, which need not be specially pleaded. It can be raised at any stage of the proceedings and even on appeal.
> [34] In the *El Elion* case *supra,* the Court further noted that:
> "It is accepted that a point of law can be raised at any stage of the process even on appeal. The law on the raising of points of law for the first time on appeal is clear and has been articulated in a plethora of cases. In *Muchakata* v *Netherburn Mine* 1996 (1) 153 (S) at p 157A KORSAH JA said;
> 'Provided it is not one which is required by a definitive law to be specially pleaded a point of law, which goes to the root of the matter, may be raised at any time, even for the first time on appeal, if its consideration involves no unfairness to the party against whom it is directed: *Morobane* v *Bateman* 1918 460; *Paddock Motors (PTY) Ltd* v *Igesund* 1976 (3) SA 16 (A) at 23D-G.'" (*my emphasis*)

Accordingly, even where it has not been pleaded, an ordinary point of law going to the root of the matter can be raised at any stage of the proceedings. In *Chombo* (*supra*), the issue of currency had not been pleaded but arose at a later stage, and the court held that it was a serious misdirection for the court *a quo* to fail to consider and determine the point of law. It is also clear that there must be no other definitive law for the point of law to be specially pleaded. Thus, where no such requirement exists, it can be raised at any time, even at the hearing. The case of *Allied Bank Zimbabwe Ltd* (*supra*) relied upon by Mr *Magwaliba* is in line with the position enunciated in *Muchakata* that unless it is a point of law which is required by law to be specially pleaded, it can be raised at any stage of the proceedings. The case of *Allied Bank Zimbabwe Ltd* also related to one point of law, which was required to be specially pleaded or raised as a special plea, that is, of lack of *locus standi*. Because of that requirement for a special plea to be raised, the Supreme Court held that the point of law could not be raised as an ordinary point of law in the circumstances. Thus, in that case, at p 5, MALABA DCJ (as he then was) stated as follows:

> "The Court is of the view that the fact that the appellant was placed under liquidation after the Pre-Trial Conference did not entitle the respondent to ignore the rules of the court on the procedure for raising special pleas. The issue was raised in a letter between the parties. Such correspondence would not constitute proper pleading. Pleadings are required to be raised in a formal manner for the court to rely on them. The respondents did not properly plead a special plea.
> The fact that the issue of *locus standi* was a point of law which could be taken at any stage in the proceedings could not assist the respondents. Although it is trite that a point of law can be raised at any stage during proceedings, that does not mean that the point of law can be raised anyhow. In order for one to raise a point of law validly at any stage, notice must be given to the other party of the intention to raise the point. There must be a formal way of raising the point. In this case, the issue was raised in correspondence between the parties. The issue of *locus* ***standi*** was not properly pleaded by the respondent**.** The court a *quo* erred in accepting the plea of lack of *locus standi* which was not properly raised." (*my emphasis*)

The court in *Allied Bank* (*supra*) was clearly referring to a point of law which is required by definitive law to be specially pleaded. Similarly, a point of law in respect of prescription, while it can be raised at any stage of the proceedings, is also required by law to be specially pleaded. See *Chombo* at pp 11-12. The *Allied Bank* case was not relating to an ordinary point of law which can be raised at any stage of the proceedings, as confirmed in *Muchakata* and *Chombo* cases (*supra*). In respect of the point of law raised by the applicant, I do not find that it is one required by any definitive law to be specially pleaded. There is no specific law nullifying ordinary points of law raised at a hearing without prior notice. Each case would depend on its own circumstances, and the consideration would mainly be as stated above, whether the law requires that the point be specially pleaded in some form, as set out in *Allied Bank* and *Chombo* cases and the consideration of fairness.

The High Court Rules contain no specific provision governing the issue of notice. I did not find any blanket bar in case law to the raising of an ordinary point of law at a hearing where notice was not given. The authority in *Muchakata* (*supra*) permits that an ordinary point of law can be taken at any stage of the proceedings and may not need to be pleaded. The critical consideration for the court to allow the ordinary point to be raised would be the question of fairness or the interests of justice. This is also the current position reflected in the Supreme Court Rules, 2025, in particular r 58(7), which states as follows:

> "(7) Notwithstanding the provisions of subrules (1), (2) and (3), a party may, with the leave of the court, raise a preliminary objection or point of law that was not included in his or her heads of argument at the hearing of the appeal:

> Provided that the court may allow the raising of the preliminary objection or point of law on such terms as it may consider just and make such order as to costs as it thinks fit." (*my emphasis*)

This provision amended r 51 in the Supreme Court Rules, 2018, which required prior written notice of a preliminary point not covered in the heads of argument to be filed in advance of the hearing. The new position set out in r 58(7) now aligns the law with the principles set out in *Muchakata* (*supra*) and reinforces that the court retains the discretion to allow the raising of any ordinary point of law even at the hearing stage. In the absence of any other definitive legislative provision, in my view, the position set out in *Muchakata* (*supra*) and reflected in the Supreme Court Rules would equally apply in this court. There is no absolute bar to raising an ordinary point of law going to the root of the matter at the hearing, even without notice, but the court is enjoined to exercise a discretion to allow the point of law to be raised in the interests of justice. I, therefore, do not agree with the argument advanced by Mr *Magwaliba* attacking the propriety of the raising of the point of law in question.

It is also trite that the court itself is at liberty to raise a point of law which exercises its mind *mero motu* and allow parties to address it before the court can make its decisions. *Nzara & Ors v Kashumba & Ors* SC 18/18. And as set out in *Muchakata* (*supra*), any party can also raise an ordinary point of law at anytime, even at the hearing. MUNANGATI-MANONGWA J in *Pacifique* v *The Commissioner General, Department of Customs & Excise* (*supra*) at p 2 affirmed the legal position that an ordinary point of law can be raised at anytime even by the court *mero motu*. The court in that case also stated that the point of law can be raised at any stage of the proceedings with notice to the other party. The court did not prescribe that it would be incompetent for the point to be raised without notice. That issue was not before the court.

In my view, the court still retains its discretion to allow the ordinary point of law to be raised and dealt with even where notice was not given before the hearing. It may be considered proper to raise a fundamental point of law that goes to the root of the matter, even at the hearing, without prior notice, provided that, in the circumstances, its consideration does not involve any serious prejudice to the other party. This position is also in sync with the law enunciated in the *Muchakata v Netherburn Mine* case (*supra*). The circumstances of the case must, therefore, be taken into account, including the nature of the point of law and whether it would require the other party to challenge the facts upon which it is raised.

In *casu,* the point taken that the board resolution was a nullity is based on a fundamental rule of corporate and procedural law, which is taken to protect the integrity of decision-making by companies and of the courts themselves. It goes to the foundation of the proceedings, and without any valid form of authority, it cannot be said that it is the legal entity that is litigating or is before the court. The point, which would also be determined entirely by considering the board resolution itself and the law, could not occasion any prejudice on the other party, as there were no fresh facts founding the point of law that would necessitate that the other party be given the opportunity to challenge them. It was one that would be resolved upon hearing legal arguments, considering what appears *ex facie* the document at p 73. There would be no prejudice to talk about, and the lack of notice thereof cannot be fatal. In the circumstances, there was no unfairness on the first respondent for the court to consider and determine the point of law. Mr *Magwaliba* had ample time to address the court on the point, as I also granted him time to consider some judgments on the point after he requested time to do so. Counsel then made extensive submissions on this point. He also quoted several judgments to support his arguments. He was clearly able to adequately address the court for the determination of the point of law. The first respondent accordingly would suffer no prejudice in the determination of the point. There is no basis, therefore, for the court to refuse to entertain the ordinary point of law.

The other leg of the impropriety taken on raising the preliminary point was what Mr *Magwaliba* stated as the principle of the first-in-time procedural defect. He argued that since the first respondent had raised its points *in limine* first, they ought to be considered first. I was referred to the case of *Reverend Clement Nyathi* (*supra*). In that judgment, His Lordship KUDYA JA applied it in respect of the several defects raised concerning the application. The court had to determine the first in time of those defects raised which afflicted the application. It was not that it was used to combine preliminary points from both parties and then choose the first in time defect. Thus, at p 5, KUDYA JA said:

> "It seems to me that, in the interests of fairness and in the exercise of my wide discretionary powers, I should consider what appears to me to be the first in time procedural defect that afflicts the application. It is that the applicant provided the incorrect *dies induciae* within which the respondents could respond to the application." (*my emphasis*)

The court also took an 'omnibus approach' by hearing all preliminary points raised by all the parties and the submissions on the merits. It then determined the point *in limine* that was dispositive of the case. The adoption of this approach is a matter within the court's discretion and may depend on the circumstances of each case. Where the issue is whether the respondent, a legal entity, is before the court, in my view, it would be prudent to first deal with that preliminary point. The determination thereof would also resolve issues purportedly raised on behalf of such a legal entity, as if the board resolution is a nullity; everything founded on it would also fall away. The absence of valid authority, it is trite, would render the proceedings incurably bad. Once the court has determined that point, it cannot go any further, as the company would not be properly before it. To that end, the point of law raised by the applicant ought, in the circumstances, to be determined first. In my view, the ordinary point of law was properly taken, and in the circumstances, the court permitted the applicant's counsel to raise it. I will, in turn, proceed to determine the point *in limine*.

It is settled law that a company is a separate legal person and ought to be represented in any proceedings by those validly clothed with such authority. Thus, in the *Dube v Premier Medical Aid Society & Anor* (*supra*), GARWE JA (as he then was), after considering several authorities, including the Supreme Court judgment in *Madzivire & Ors* v *Zvarivadza & Ors* (*supra*), had this to say:

> "In a decision reported as *Madzivire & Ors v Zvarivadza & Ors* (*supra*), at 515, this Court (per CHEDA JA) remarked as follows:-"A company, being a separate legal person from its directors, cannot be represented in a legal suit by a person who has not been authorised to do so. This is a well-established legal principle, which the courts cannot ignore. It does not depend on the pleadings by either party. The fact that the person is the managing director of the company does not clothe him with the authority to sue on behalf of the company in the absence of any resolution authorising him to do so. The general rule is that directors of a company can only act validly when assembled at a board meeting. As exception to this rule is where a company has only one director who can perform all judicial acts without holding a full meeting."
>
> [38] The above remarks are clear and unequivocal. A person who represents a legal entity, when challenged, must show that he is duly authorised to represent the entity. His mere claim that by virtue of the position he holds in such an entity he is duly authorised to represent the entity is not sufficient. He must produce a resolution of the board of that entity which confirms that the board is indeed aware of the proceedings and that it has given such a person the authority to act in the stead of the entity. I stress that the need to produce such proof is necessary only in those cases where the authority of the deponent is put in issue. This represents the current state of the law in this country." (*my emphasis*)

The difference between this case and the cases of *Dube* and *Madzvivire & Ors* (*supra*) is that in those cases, there were no board resolutions attached to the founding papers. There were mere averments that the deponents were authorised to represent the respective companies. But the court said that was not enough where the authority is put in issue or challenged. In that regard, in *Dube* the court, therefore, held that when such authority has been challenged, then proof of authority in the form of a board resolution must be produced. This entails a duty upon the party claiming that the deponent has such authority to place such proof of authority before the court. However, the remarks in the South African case of *Mall (Cape) (Pty) Ltd* referred to by Mr *Magwaliba* that the other party challenging the authority has to show the evidence of lack of authority do not reflect the position of our law as settled in the *Dube* case.

The cases of *Dube* and *Madzivire & Ors* (*supra*), where there were no resolutions produced, are distinguishable from the present case, where there was a purported board resolution produced and touted as the source of the authority of the deponent to act on behalf of the first respondent. In that respect, therefore, the court is then confined to determine whether that source of authority is indeed one which authorises the present proceedings or whether the board resolution is a valid authority to represent the company. It is trite that the purpose of a resolution is to show that the company is indeed aware of the proceedings and that the deponent has been clothed with the authority to act on its behalf. The law is clear that for the board resolution to be valid, it must specifically speak to the current proceedings so that it can be shown from the resolution itself that indeed the company is aware of the proceedings and that it has authorised those proceedings. Thus, in *Tichahleyi Mpofu v Zimbabwe Manpower Development Fund* SC 33/24 at p 8**,** para 21, the court stated:

> "It is settled in this jurisdiction that a person representing a legal entity has to be clothed with the requisite authority and that the entity is aware of the proceedings undertaken on its behalf." (*my emphasis*)

I reproduce the purported board resolution at p 73 of the record herein. It reads:

"EXTRACT FROM MINUTES OF DIRECTORS OF LIVETOUCH INVESTMENTS (PRIVATE) LIMITED HELD VIRTUALLY ON THE 11TH OF SEPTEMBER 2024

Wherein it was resolved that;

1. The company, Livetouch Investments (Private) Limited, will file opposing papers in case number HCH3062/24 filed by Avim Investments (Private) Limited at the High Court in Harare against Livetouch Investments (Private) Limited and Philcool Investments (Private) (HCH 3062/2024). The same lawyers who have handled the matter, Messrs Moyo and Nyoni Legal Practitioners, will be retained.

2. George Makonese, the administration and operations manager who has full knowledge of the matter since it started and has been going on in the courts in Bulawayo and in Masvingo, will sign the opposing affidavit or any affidavit that may need to be signed in the High Court in Zimbabwe or any court of law in Zimbabwe in the current dispute or any dispute emanating from the judgement granted in Masvingo under HMA48/22.

Thus, signed at Kwekwe on the 11th day of September 2024" (*my emphasis*)

In this case, the proceedings before me were filed under Case No. HCH 5409/24. One can only purport to act for the first respondent in the current application, being case number HCH 5409/24. But when one looks at the board resolution at p 73, in particular para 1, it is very clear that the authority to litigate on behalf of the company was granted in respect of the matter referred to as case number HCH 3062/24. The language used in that paragraph is clear and unambiguous, and accordingly, no other meaning can arise. There is no doubt, therefore, that the resolution does not relate to the current proceedings in specific terms. The board resolution authorises the deponent to act in para 1 with respect to filing the opposing papers in the said Case No. HCH 3062/24. Paragraph 2 must be taken to flow from the same position adopted in para 1.

It is common cause that the proceedings under Case No. HCH 3062/24 were withdrawn, and the notice thereof is actually at p 74 of the record. That para 1 does not refer to the current proceedings under case No. HCH 5409/24. The purported resolution is invalid for the purposes of this matter, which is not HCH 3062/24. The said board resolution was also passed on 11 September 2024, well before this application was even filed. The application before me was filed on 28 November 2024. It cannot be said by any stretch of imagination that the said board resolution was speaking to the proceedings which are before me when those proceedings had not even been commenced or initiated.

Mr *Magwaliba* argued that para 2 of the said resolution shows that there was a valid authority for the current proceedings too. I do not agree. If one considers that this resolution was passed on 11 September 2024, when the current proceedings had not even been filed, it would be contrary to the settled legal requirement that a board resolution must not be general or a blanket resolution authorising some unknown future litigation. As stressed in *Mpofu* and *Dube* (*supra*), the board resolution is required to show that the legal entity is indeed aware of the proceedings and has authorised them. The issue of a blanket resolution or one which purports to authorise any future litigation has been dealt with extensively in many judgments of this court. In *Arosume*

Property Development (*supra*), I also had an opportunity to weigh in on the point in para 18 and said:

> "As outlined in the *Madzivire* and *Dube* cases *supra*, a resolution of the board filed must show that the company is indeed aware of the proceedings and that it has authorised the specific proceedings before the court. The resolution must also in clear terms give the deponent to the founding affidavit the specific authority to act on its behalf in commencing the instant application. In this regard, it has been expressed by several authorities that a blanket resolution is invalid. It is, therefore, trite that a board resolution must authorise the specific litigation involving the parties before the court. One which purports to authorise all litigation by the company in the future cannot meet the requirement of specificity and is, therefore, fatally defective and a nullity. Thus, in *Mkandla v PPC Zimbabwe supra* KABASA J had this to say:
> "In *Beach Consultancy (Private) Limited* v *Makonya & Anor* HH 696-21 MAKOMO J had occasion to deal with the issue regarding blanket authority. The learned Judge acknowledged that convenience may dictate that a blanket authority be given in some cases as it may be onerous for big corporates to routinely convene board meetings to pass resolutions granting an official to represent it each time such a corporate is engaged in litigation. Having said that the learned Judge proceeded to say:- "Unfortunately, this apparently convenient practice is in my view not supported by law. The current position of the law is that it must be shown that the corporate is aware of the proceedings that it is authorizing. The reason for insistence on the company being aware of the proceedings is to confirm that it is indeed the company that has taken the decision to participate in the court case and that it is not an unauthorized person who is dragging it to court without its knowledge." …

The same issue has continued to boggle this court. The court has pronounced its position quite clearly, and it cannot be in dispute that any resolution that does not meet the requirement of specificity in relation to the proceedings before the court is fatally defective and, therefore, a nullity. See also *Citizens Coalition for Change & Ors v Tshabangu* HH 862/25 at pp 8-9 where DUBE JP also considered the several authorities on the issue and had this to say:

> "A resolution to institute or defend proceedings must be clear and specific to named proceedings and not be overly broad or generalized. The resolution must give specific authority for a particular legal action and explicitly relate to the litigation contemplated or to be defended and identify the proceedings by name or description. A legal entity authorising someone to institute or defend proceedings on its behalf must demonstrate that it is aware of the specific proceedings and has explicitly authorised its representative to act on its behalf. Authority to litigate cannot be granted retrospectively.
> 24. The issue of blanket resolutions has troubled many a court. In *Latifa Sidat & Ors* v *Lambat* HH 50/24, the court cited with approval sentiments expressed in *Madzivire* v *Zvarivadza & Anor* 2006 (1) ZLR 514 (S) as follows:
> "I must also apply the principle of law exposed by the Supreme Court in the case to the effect that the issue of the authority of a person to represent a corporate entity and institute proceedings on its behalf is a substantive matter which a resolution of the board should deal with. It is not a matter of pleading. Following on the above narrative, it must follow that for a company or juristic entity's board resolution relating to litigation by it to be valid, it must be specific in its reference to the particular cause to be litigated upon and the person or entity against whom the proceedings

> are to be instituted. A corollary is that it is the same where the entity resolves to defend a litigation against it. A blanket authority to represent the juristic entity and litigate as the case maybe. Thus, whilst the authority to represent the company may be generalized, when it comes to litigation, the entity must specially authorize the institution of litigation or the defence of a litigation. …It does not matter that the litigation was instituted on the same day that the application was prepared filed. The clear authorities of the court are to the effect that the pleadings filed consequent to the resolution do not become infused. Therefore, the applicants cannot seek to validate an invalid resolution by adopting the position that the resolution must be read as referring to the litigation which was subsequently filed, in this case, contemporaneously with the passing of the resolutions. As a stand-alone document, the resolution needs to be independently valid. *In casu*, the resolutions unfortunately for the second to the eighteenth applicants are invalid or fall short of what the law requires to characterize a valid resolution passed for purposes of litigation. The effect of the invalid resolutions is that the second to the eighteenth applicants are not properly before the court…" See also *Arosume Property Development (Private) Limited vs Farai Olivia Mashonganyika & Another* HH 143/25."
>
> …
>
> 26. A resolution that purports to authorise all or blanket litigation sought to be brought by a legal entity in the future cannot meet the requirement of specificity and is therefore fatally defective and a nullity. A general or blanket authority covering all possible litigation does not meet this requirement and is flawed and may lead to the case being dismissed, see *Arimac Pvt Ltd* v *Chiwo and Anor* 1991(2) ZLR 185 (SC); *Madzivire* v *Zvarivadza & Another* 2006 (1) ZLR 514 (S), *Arosume Property Development (Private) Limited* v *Farai Olivia Mashonganyika & Another* HH 143/25." (*my emphasis*)

When one considers the board resolution at p 73, it cannot be said that it authorises the specific litigation before me under HCH 5409/24. The resolution was issued before these proceedings had been instituted. Paragraph 1 is very clear as to the litigation it was relating to and which it authorised the deponent to act on its behalf. The same flows into the first part of para 2 as the authority is to sign the opposing affidavit in the matter related to in para 1. The second part of para 2 clearly constitutes a general or a blanket resolution purporting to authorise the deponent, George Makonese, to sign "an affidavit that may need to be signed in the High Court of Zimbabwe or any court in Zimbabwe in the current dispute or any dispute emanating from the judgment granted in Mashingo under HMA 48/22." The board resolution is undoubtedly invalid as it does not authorise the deponent to act on behalf of the first respondent and clothe him with authority to defend the current proceedings.

It is trite that an invalid board resolution or one that is a nullity renders the proceedings a nullity. In the case of an opposition, it would also equally be a nullity. A nullity cannot beget a valid process. Everything founded on it would be incurably bad, as nothing can stand or flow

from a nullity. This position was restated in *Trustees for the Time Being of Oliver Mandishona Chidawu* (*supra*) at pp 6-7, where MUSAKWA JA was very emphatic, saying that:

> "9. The law is clear and uncompromising that acts done without lawful authority are void *ab initio* and are, in law, nullities.
> …
> 11. As can be noted from the case of *Madzivire & Ors* v *Zvarivadza & Ors supra*, where a company institutes proceedings through persons who are not lawfully empowered to act on its behalf**,** any instrument they purport to make, and any proceedings founded upon it, lack legal existence. This is not a technicality; it is a fundamental rule of corporate and procedural law that protects the integrity of corporate decision-making and the courts themselves**.**
> 12. Applying that principle to the facts, the judgment in HH 668/23, and the confirmation in SC 16/24, establishes that the two individuals who authorised the application in the court *a quo* under case number HCHC 492/23 were not, and never had been, directors of the company. The purported board resolution relied upon to confer authority, therefore, possessed no legal effect from the moment of its creation. It was not merely voidable or irregular but it was incurably bad and therefore a nullity because it was issued by persons who had no capacity to act for the company. Under these circumstances, there was nothing in law for the court *a quo* to receive or act upon as a court cannot, by ignorance or oversight, supply the missing element of authority and thereby breathe life into an otherwise meaningless instrument. See *Macfoy* v *United Africa Co. Ltd* (*supra*).
> 13. The consequences of that foundational defect are immediate and categorical. Once it is shown that the application was instituted without lawful authority, the entire proceedings collapse. The rule that "you cannot put something on nothing and expect it to stay there" is particularly apposite, every step taken in reliance on the invalid resolution is itself tainted and incapable of producing valid judicial outcomes. The court *a quo*'s failure to decline jurisdiction or to strike the matter off the roll upon the clear challenge to authority therefore constituted a misdirection of law. By entertaining and adjudicating the application, the court *a quo* effectively permitted the fruits of an unlawful act to be litigated, an approach the law does not allow.
> Having regard to these principles and the uncontroverted factual matrix, the correct and only competent judicial response was to treat the proceedings as a nullity and to strike the matter from the court's roll." (*my emphasis*)

The above legal position would equally apply in this case in respect of the purported opposition by the first respondent. The effect of the board resolution that is fatally defective would be to nullify all the opposing papers before me. The first respondent is, therefore, not before the court. The court cannot ignore the fundamental rule that requires valid authority from anyone who claims to have been authorised to act for a legal entity. Any proceedings founded on a purported board resolution that is void *ab initio* lack legal existence. The effect of a nullity is well-settled. See also the famous statement by LORD DENNING in *MacFoy* v *United Africa Co. Ltd* [1961] 3 All ER 1169 at 1172, also cited in *The Trustees for the Time Being of Oliver Mandishona Chidawu Trust* (*supra*) at p 6.

In the circumstances, therefore, the first respondent, technically not being properly before the court, cannot in any case present an application for a postponement to produce a resolution. The effect of a nullity is that nothing valid can flow from nothing. Accordingly, there being no opposition from the respondent, it follows that Mr *Magwaliba* had no right of audience to address the court on any application save for one for the removal of the bar now operating against the first respondent for failing to file its notice of opposition in terms of the rules. An act that is void *ab initio* cannot produce valid consequences. There can therefore be no valid request to postpone the case for another board resolution to be filed. The first respondent is not before the court and, therefore, cannot in any case produce anything before the court. I fully associate myself with the remarks in *Chiunga* v *AFC Commercial Bank* Ltd SC 02/26, where MUSAKWA JA said:

> "However, before these factors can be meaningfully examined, there must exist a competent matter in respect of which condonation may validly be granted. Where the proceedings are a nullity, any subsequent application founded upon them is equally void. This position was aptly stated in *The Garrat Trust* v *Creative Credit (Pvt) Ltd* SC 146/21 at p 6 …" (*my emphasis*)

There was nothing to place before the court, as nothing could flow from a nullity. In any event, I must state that a postponement itself is not a right which is obtainable on demand. It is an indulgence that the court can grant in the exercise of its discretion, subject to the applicant meeting the requirements of an application of that nature. See *Apex Holdings (Pvt) Ltd* v *Venetian Blind Specialist Ltd* SC 33/15. Besides that, any attempt by Mr *Magwaliba* to apply for a postponement would be invalid as no application can be founded on a nullity; the application was, in any case, not properly motivated.

DISPOSITION

The purported board resolution, which the deponent to the first respondent's opposing affidavit relied upon, was a nullity. It did not specifically authorise Mr George Makonese to represent the first respondent in these proceedings. The entire purported opposing papers for the first respondent collapse. They are incurably bad. No lawful basis would, therefore, exist for the indulgence of a postponement. The purported notice of opposition from the first respondent is accordingly struck out, and the matter shall proceed as unopposed.

Mr *Makwanya* had prayed that the application be granted. I will accordingly grant the unopposed application.

Regarding costs, there was a prayer in the draft order for costs on a legal practitioner and client scale. However, these were not motivated by the applicant's counsel. Such costs are only granted in exceptional circumstances. They are not simply awarded because a litigant has requested them. There was no reason to mulct the first respondent with costs on a punitive scale. Costs on the ordinary scale should suffice.

It was for the above reasons that the court entered the judgment aforestated.

DEMBURE J: ……

Manase & Manase, applicant's legal practitioners
Moyo & Nyoni, first respondent's legal practitioners